

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404257	PEARSON vs COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendant City of San Jacinto

Non-Opposing party: Plaintiff Roosevelt Pearson

This is a personal injury action initiated on July 15, 2024 by Plaintiff Roosevelt Pearson against Defendants County of Riverside (the “County”) (On September 12, 2024, Plaintiff filed a request to dismiss County), City of San Jacinto (the “City”), Jessica Childress (“Childress”) (On April 9, 2025, Plaintiff filed a request to dismiss Childress, but on April 29, 2025, Plaintiff filed an amendment to the Complaint designating Doe 1 as Childress), and Michael Heckman (“Heckman”) (On August 14, 2025, Plaintiff filed an amendment to the Complaint designating Doe 2 as Heckman). Plaintiff alleges Defendants allowed a dangerous condition to exist on public property and failed to provide any stop signs, warnings, and/or signals at the intersection where Childress collided her car into Plaintiff’s (the “Incident”). The collision caused Plaintiff to sustain serious injuries and a fatality to another passenger in Plaintiff’s car¹. Defendants’ negligence was a substantial factor in causing Plaintiff’s harm.

The operative Complaint asserts 3 causes of action: (1) Dangerous Condition of Public Property (against County and City); (2) Motor Vehicle; and (3) General Negligence (against Childress only)

City now moves for summary judgment on the grounds (1) Plaintiff’s claims are barred by immunity and (2) Plaintiff cannot show the existence of a dangerous condition of public property.

On July 7, 2026, this Court granted the Ex Parte Application for Order Vacating the August 28, 2026 jury trial. The instant case was ordered consolidated with case CVRI2506580. The instant case is designated the master file.

EVIDENCE SUPPORTING MOTION

Separate Statement of Undisputed Material Facts (“UF”)
Compendium of Evidence (“COE”)
Exhibit 1: Declaration of Jennifer Stone (“Stone”)
Exhibit 2: Plaintiff’s Complaint
Exhibit 3: Plaintiff Responses to Childress’s Special Interrogatories
Exhibit 4: City Answer to Complaint

¹ On November 17, 2025, CVRI2506580 was filed by the deceased passenger’s successor-in-interests against Childress and Heckman. A notice of related case was filed on May 6, 2026 (designating Banning Justice Center) and June 2, 2026 (designating Riverside Historic Courthouse).

Exhibit 5: Excerpts from Plaintiff Deposition
Exhibit 6: Excerpts from Yadira Rivera Deposition
Exhibit 7: Excerpts from Childress Deposition
Exhibit 8: Google Street View Image of Subject Intersection
Exhibit 9: Google Street View Image of Subject Intersection

LEGAL ANALYSIS

Standard.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Dangerous Condition of Public Property.

A public entity is generally liable for an injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury and the public entity had actual or constructive notice of the dangerous condition. (Gov. Code, §§ 835, 835.2; *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1126.)

Sign Immunity – Government Code sections 830.4 and 830.8.

City asserts Plaintiff's claims are barred by sign immunity set forth in Government Code sections 830.4 and 830.8.

Government Code section 830.4 provides:

"A condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in Section 21460 of the Vehicle Code."

The affirmative defense of "signage immunity" provides that a public entity is not liable "for any injury caused by failure to provide traffic or warning signals, signs, markings, or devices described in the Vehicle Code." (Gov. Code, § 830.8.) The "concealed trap" exception of section 830.8, however, permits imposition of liability on public entities when the failure to post signs or signals of a dangerous condition creates a "trap" for the unwary motorist. (*Id.* [the exception exonerates "for injury proximately caused by such failure if a signal, sign, marking or device (other than one described in Section 830.4) was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care"; *Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.) However, even if the dangerous condition was a concealed trap, "the plaintiff must prove the public entity **had notice** of the dangerous condition" to prevail. (*Tansavatdi, supra*, 14 Cal.5th at 665.)

The following is undisputed: On December 9, 2023, at approximately 1:56 pm, Plaintiff was struck by a motor vehicle driven by Childress at the intersection of East First Street and South Vernon Avenue (the "Subject Intersection") in the City of San Jacinto. (UF #1.) City is a public entity and owns and controls the Subject Intersection. (UF #6-7.) There is a stop sign controlling traffic on Vernon Avenue at the Subject Intersection where Plaintiff was traveling. (UF #2, 4.) Childress had been driving on First Street at the Subject Intersection where there is no stop sign. (UF #3, 5.) Plaintiff stopped at the stop sign on Vernon before proceeding through the Subject Intersection, at which time Plaintiff was struck by Childress. (UF #4.) Plaintiff alleges that the Subject Intersection was dangerous because City "[failed] to provide any stop signs, warnings, and/or signals at the subject intersection." (UF #8.)

Applying, sections 830.4 and 830.8 and *Tansavatdi*, City is protected by signage immunity thus meeting its initial burden under Code of Civil Procedure section 437c, subdivision (b)(3). The burden shifts to Plaintiff. Plaintiff failed to present any evidence to show city had notice of the dangerous condition before the Subject Incident. Accordingly, the concealed trap exception does not apply.

Because Plaintiff did not present any evidence to rebut City's evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

GRANT summary judgment because no triable issues of material fact exist.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2406927	MUNOZ vs CITY OF BANNING	MOTION FOR DISCLOSURE AND USE OF PEACE OFFICER PERSONNEL RECORDS (PITCHESS MOTION)

Tentative Ruling:

Moving party: Plaintiff Robert Jauregui-Munoz
Responding party: Defendant City of Banning

This Fair Employment and Housing (“FEHA”) action arises from Plaintiff Roberto Jauregui-Munoz’ (“Plaintiff”) employment in City of Banning’s (“City”) Police Department.

The operative complaint is the Third Amended Complaint (“TAC”), which Plaintiff filed against City on September 4, 2025, alleging causes of action for: (1) Racial Discrimination in Violation of FEHA; (2) Racial Retaliation under FEHA; and (3) Failure to Prevent.

In the TAC, Plaintiff alleges that he presented himself as a Hispanic male to his employer, City’s Police Department, where he has worked since 2012. Plaintiff contends that in October 2018, Doug Schulze (“Schulze”), a white male, became City Manager. In 2019, Schulze hired Matthew Hamner (“Chief Hamner”) as the Chief of City’s Police Department, then hired Jeff Horn (“Horn”) as a Captain. Plaintiff alleges that Schulze, Chief Hamner, and Horn are all white males, friends, and came from Bainbridge Island, Washington.

Plaintiff alleges that since 2019, after Schulze became City Manager, Plaintiff has consistently been denied promotions and other work opportunities because of his race. Plaintiff alleges that the division between the races in the Police Department was so widely known that a formal investigation was initiated where it was alleged that the department was informally divided into a “Mexican Gang” and “White Gang.” Plaintiff alleges that there was widespread favoritism of white officers, and that whenever a new white officer joined the department, senior white officers would offer them more training, guidance, and resources.

Plaintiff alleges that he served as Treasurer of the Banning Police Officers’ Association (“Union”) in 2020 and 2021, in which he promoted fair and equal opportunities so race that would not be a factor in determining employment opportunities. Plaintiff alleges that as a result of his outspoken views on the racial